

“[T]he primary purpose [of section 598] is to permit the issue of liability in personal injury cases to be tried prior to that of damages when, in the opinion of the court, the facts of a particular case justify it.” ... Such separate trial of the liability issue was considered desirable to avoid wasting court time in cases where the plaintiff loses on the liability issue, to promote settlements where the plaintiff wins on the liability issue, and to afford a more logical presentation of the evidence, thus simplifying the issues for the jury.

Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 888, n. 8.

In summary, “[t]he major objective of bifurcated trials is to expedite and simplify the presentation of evidence.” *Id.* at 888.

Again, this case arises out of a motor vehicle accident involving allegations that Plaintiff’s vehicle was hit from behind by Defendant Jodi Michelle Andrews while Andrews was operating a vehicle owned by her current/former employer Defendant Ringen. Defendant Ringen’s earlier motion to strike punitive damages was granted; however, Defendant Andrew’s motion to strike punitive damages was denied. Plaintiff contends that he suffered severe injuries as a result of the incident. In support of his motion, Defendant Ringen argues the witnesses regarding damages will number into the dozens, and litigating damages, if a jury has already concluded Ringen is not liable, would not be a good use of time and resources. The Court agrees.

The Court finds bifurcating the trial of this action so the issue of liability is tried before the issue of damages will simplify and organize the presentation of evidence which will be conducive to expedition and economy for the parties and the Court. At bar, it appears there will be little overlap in the testimony regarding liability and the damages claimed by Plaintiff. As such, bifurcating the trial likely will reduce the time/resources necessary for proof of the damages phase, if Defendant Ringen prevails on the liability phase with respect to the general negligence theory or the Vehicle Code section 17150 theory. See *Trickey v. Superior Court In and For Sacramento County* (1967) 252 Cal.App.2d 650, 653; *Foreman & Clark Corp.* (1971) 3 Cal.3d 875, 888 fn. 8. Alternatively, if Defendant is found liable in the first phase of trial, on either theory (and particularly if Defendant is found liable only under a Vehicle Code theory), such a finding may promote settlement, thus rendering the second damage phase unnecessary as to this Defendant. Lastly, and significantly, bifurcation will mitigate the risk that the jury, in deciding liability as to Defendant Ringen, will be improperly influenced by extensive damages evidence.

The motion is granted.

3. CU0002492 Bank of America, N.A. v. Prashant Tyagi

Cross-Defendant Bank of America, N.A.’s unopposed motion for order setting aside and vacating default and any default judgment is granted.

Pursuant to Code of Civil Procedure section 473(b), “the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to the attorney’s mistake, inadvertence,

surprise, or neglect, vacate any...resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment."

At bar, Cross-Defendant's counsel attests that his mistake and inadvertence resulted in the default entered on December 26, 2026. The request to set aside default was timely filed on February 24, 2026 and is unopposed. Indeed, Cross-Complainant has offered to stipulate to the relief requested.

Relief is warranted and the December 26, 2026, default in connection with the original complaint is vacated.

While this motion was pending, a First Amended Cross-Complaint was filed on May 4, 2026. Cross-Defendant Bank of America shall file a response to the same within 30 days of this Order.

4. CU0002612 LGC Sierra Pines MHC LLC vs. Sierra Pines Mobile Home Park

Prospective Intervenor SP MHC LP, LP and SP MHC GP, LLC's (collectively "SP Partners") unopposed February 24, 2026, motion to intervene is granted. SP Partners are granted leave to file the complaint in intervention attached to the moving papers within 10 days of this Order.

Legal Standard

"An intervention takes place when a nonparty, deemed an intervenor, becomes a party to an action or proceeding between other persons" and joins a plaintiff in seeking relief, unites with a defendant in resisting the claims of a plaintiff, or demands relief adverse to both a plaintiff and a defendant. Code Civ. Proc. § 387(b). "The purpose of allowing intervention is to promote fairness by involving all parties potentially affected by a judgment." *Lindelli v. Town of San Anselmo* (2006) 139 Cal.App.4th 1499, 1504.

Code of Civil Procedure § 387(d) provides as follows:

- (1) The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied:
 - (A) A provision of law confers an unconditional right to intervene.
 - (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless the person's interest is adequately represented by one or more of the existing parties.
- (2) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.

Code of Civil Procedure section 387(c) provides that a nonparty "shall petition the court for leave to intervene by noticed motion or by ex parte application. The petition shall include a copy